

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

vs.

CASE NO.: 2021-CA-4553

LORI SKIPPER,

**Defendant/Counter-Plaintiff/
Third-Party Plaintiff,**

vs.

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

and

**CHERYL PEAKE, in her personal and separate
capacity, and JILL WRIGHT, in her personal
and separate capacity,**

Third-Party Defendants.

_____/

**PEAKE’S MOTION FOR SANCTIONS PURSUANT TO
SECTION 57.105, FLORIDA STATUTES**

Pursuant to Florida Statute section 57.105, Third-Party Defendant, Cheryl Peake (“Peake”), moves for an award of attorney’s fees and costs because Defendant/Counter-Plaintiff/Third-Party Plaintiff Lori Skipper (“Defendant” or “Skipper”) knew or should have known that her Amended Counter Complaint is not supported by the law or material facts necessary to establish a claim. In support of this Motion, Ms. Peake states:

1. Ms. Peake is an employee of Colonial Manor MHC Holdings, LLC (“Colonial Manor”) and acts as the current resident manager of Colonial Manor Mobile Home Park – a mobile home park owned by Colonial Manor where the Defendant currently resides.

2. On November 4, 2021, Colonial Manor initiated the instant action by filing a three-count Complaint against Defendant as a result of Defendant’s breach of her Employment Agreement with Colonial Manor. Ms. Peake was not a named party to the Complaint.

3. In response to Colonial Manor’s Complaint, Defendant filed a Counterclaim on November 23, 2021. Defendant subsequently filed an Amended Counterclaim on December 27, 2021. Neither of Defendant’s Counterclaims named Ms. Peake as a party.

4. On or about March 28, 2022, Defendant filed a second amended counterclaim titled “Amended Counter Complaint” following the Court’s March 21, 2022 Order Adopting and Approving Magistrate’s Report and Recommendation that dismissed all counts of Defendant’s Amended Counterclaim with leave to file an amended counterclaim.

5. Defendant’s amended pleading now names Ms. Peake as a “Cross Complaint Defendant” in her personal capacity, but fails to state any specific cause of action against Ms. Peake.

6. Defendant’s amended pleading appears to be nothing more than an effort to harass Ms. Peake based on her employment with Colonial Manor.¹

¹ Ms. Peake was purportedly “served” with a Summons that was not issued by the Manatee County Clerk of Court or a judge. The summons was apparently drafted and served by an individual, George Yeske, who posed as a process server. Pursuant to the Twelfth Judicial Circuit’s Administrative Order 2015-24.2, a process server must be certified, and Mr. Yeske is not a certified process server. In fact, Mr. Yeske is also not licensed to practice law in Florida, though Defendant Skipper’s lengthy filings in this case continue to suggest that she is receiving assistance from him.

ARGUMENT

Section 57.105, Florida Statutes, provides, in relevant part:

Upon . . . motion of any party, the court shall award a reasonable attorney's fee, including prejudgment interest, to be paid to the prevailing party in equal amounts by the losing party and the losing party's attorney on any claim or defense at any time during a civil proceeding or action in which the court finds that the losing party or the losing party's attorney knew or should have known that the claim or defense when initially presented to the court or at any time before trial:

- (a) Was not supported by the material facts necessary to establish the claim or defense; or
- (b) Would not be supported by the application of then-existing law to those material facts.

Entitlement to fees pursuant to section 57.105 requires a showing of: (1) a claim or defense; (2) unsupported by the material facts or the application of existing law to those facts; and (3) that at any time during the proceeding, the party and counsel knew or should have known that the claim or defense was unsupported by the material facts or the application of existing law to those facts. *Albritton v. Ferrera*, 913 So. 2d 5, 9 (Fla. 1st DCA 2005). The phrase "supported by the material facts" in section 57.105(1) means that "the party possesses admissible evidence sufficient to establish the fact if accepted by the finder of fact." *Id.* at 8 n.1. A party may be subject to sanctions under section 57.105 if a claim is not dropped or dismissed when it becomes evident it is no longer justiciable. *Id.* at 8.

As an initial matter, Defendant has failed to establish personal jurisdiction over Ms. Peake due to improper and ineffective service of process. *Sierra v. U.S. Bank Trust, N.A., et al.*, 299 So. 3d 402, 403 (Fla. 4th DCA 2020) ("Proper service of process is indispensable for the court to obtain personal jurisdiction over a defendant..."). However, even overlooking the improper service of process, Defendant's pleadings fail to comply with Florida Rules of Civil Procedure and

impermissibly combines pleadings and lacks any allegations of ultimate fact needed to support the claims for relief. *See* Fla. R. Civ. P. 1.110(b)(2).

Moreover, Defendant has failed to state any specific claim against Ms. Peake. *See* Fla. R. Civ. P. 1.110(f) (“[e]ach claim founded upon a separate transaction or occurrence ... shall be stated in a separate count.”); *Collado v. Baroukh*, 226 So. 3d 924, 927-28 (Fla. 4th DCA 2017) (holding that an action was properly dismissed when the plaintiff, in making “blanket references to ‘defendants’ throughout the complaint . . . commingl[ed] separate and distinct claims against multiple defendants” as prohibited by rule 1.110(f)); *see also K.R. Exch. Servs., Inc. v. Fuerst, Humphrey, Ittleman, PL, et al.*, 48 So. 3d 889, 893 (Fla. 3d DCA 2010) (finding dismissal appropriate when the complaint improperly referred to the defendants collectively and did not “differentiate among the various defendants’ actions and statements”). Rather, Defendant’s Amended Counter Complaint makes a mere reference to Ms. Peake carrying out her duties as an employee of Colonial Manor without stating any specific claims in any separate count as it applies to Ms. Peake.

Yet, even setting aside these further procedural deficiencies, it is clear here that any purported claim against Ms. Peake is unsupported by the material facts necessary to establish a claim for violation of rights established pursuant to Chapter 723, Florida Statutes or gender discrimination pursuant to the Florida or Federal Fair Housing Act.

WHEREFORE, Ms. Peake requests that this Court award attorney’s fees and costs and such other sanctions as the Court may deem appropriate in her favor.

In accordance with section 57.105(4), Florida Statutes, this motion is being served, but not filed, on the date set forth in the certificate of service below.

/s/ Jordann Wilhelm

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Cheryl Peake*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document was served via U.S. mail on this 19th day of April, 2022, to Defendant, Lori Skipper, at 900 9th Ave. E., Lot 211, Palmetto, Florida 34221.

/s/ Jordann Wilhelm

JORDANN WILHELM